

25CMCV00039 25CMCV00039

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-07-14

Motion: PLAINTIFF'S MOTION FOR RECONSIDERATION OR RELIEF PURSUANT TO CODE OF CIVIL PROCEDURE § 473

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=COM%2CA%2C07%2F14%2F2026

Source SHA-256: ee3f08223722703945c3b7e9a44550f0b8a0904a23ee81439074a2fc8940d60e

Case Number: 25CMCV00039 Hearing Date: July 14, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

STEPHANIE ESTRADA GUZMAN, et al.,

Plaintiffs,

vs.

LYFT,
INC., et al.,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 25CMCV00039

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION FOR RECONSIDERATION OR RELIEF PURSUANT TO CODE
OF CIVIL PROCEDURE § 473

Dept.

A

DATE:

July 14, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 01/09/2025

TRIAL:

01/25/2027

MOVING

PARTY: Plaintiff Stephanie

Estrada Guzman

RESPONDING

PARTY: Defendant Sam Hans Kazerouni

1.

Background

This is a motor vehicle collision action. Plaintiffs Stephanie Estrada Guzman, Juan Diego Estrada Godinez, Maximino Filiberto Estrada Aroche, Edla Coralia Estrada Aroche, German Estrada Estuardo Aroche, Gilberto Benjamin Estrada Aroche, and Gilberto Benjamin Estrada Godinez (collectively, "Plaintiffs") allege that defendants Lyft, Inc., Sam Hans Kazerouni, and Victor Gonzalez (collectively, "Defendants") negligently hired, trained, entrusted, supervised, and/or retained the driver of their respective motor vehicles so as to cause injuries to and the wrongful death of Decedent Gilberto Estrada Montufar.

On

June 9, 2026, the court heard Plaintiff Guzman's motion to compel volume 2 of Defendant Kazerouni's deposition. The court denied Guzman's motion at that time.

2.

Discussion

Plaintiff Guzman moves for reconsideration of the court's June 9, 2026 order. In the alternative, Guzman requests relief pursuant to Code of Civil Procedure § 473. Guzman contends that the court denied her motion based on failure to file a transcript of the first deposition of Defendant Kazerouni, but that the transcript was lodged with the court and erroneously was not filed. In opposition, Kazerouni contends that the minute order does not state that the transcript was the sole issue for which the motion was denied and that Guzman has not shown new or different facts, circumstances, or law as is required on a motion for reconsideration.

a. Motion for reconsideration

Code

of Civil Procedure § 1008, subdivision (a) provides:

When an

application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

A

court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon "new or different facts, circumstances or law." (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1499 (Gilberd).) Motions for reconsideration are restricted to circumstances where a party offers the Court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (Ibid.)

Moreover,

there is a strict requirement of diligence, which means the moving party must present a satisfactory explanation for failing to provide the evidence or different facts earlier. (Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 690.) The burden under Section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at trial. (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212-213.)

Guzman

has not shown that there are new or different facts, circumstances, or law justifying reconsideration. Guzman contends that the court's prior order was erroneously based upon the premise that the deposition transcript had not been lodged, and that the new fact is documentary proof that the deposition

transcript had been lodged. However, this does not constitute a new or different fact, circumstance, or law within the meaning of Code of Civil Procedure § 1008. The fact of lodging was extant and in Guzman's possession as of the time of the original motion and the June 9, 2026 hearing. Furthermore, whether the transcript was lodged is irrelevant to whether the transcript was filed, which it was not. Under Code of Civil Procedure § 1005, subd. (b), all papers in support of or opposition to a motion must be filed.

b. Request for Code of Civil Procedure § 473 relief

The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc. § 473, subd. (b).) Excusable neglect is such as might have been the act of a reasonably prudent person under the same circumstances, exercising reasonable diligence. (*Elms v. Elms* (1946) 72 Cal.App.2d 508, 513.) Where such an application is timely made and accompanied by the moving party's counsel's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, relief is mandatory. (Code Civ. Proc. § 473, subd. (b).)

Guzman

contends that Section 473 relief is appropriate because her counsel took all reasonable steps to make the transcript available to the court and believed that those steps were sufficient, but failed to file the transcript by mistake, inadvertence, or excusable neglect.

Kazerouni

cites *Pazderka v. Caballeros Dimas Alang, Inc.* (1998) 62 Cal.App.4th 658 for the proposition that "professional shortcomings" do not justify relief under Section 473. However, in *Pazderka*, the court found that a party could not set aside a settlement agreement where their counsel mistakenly failed to include an attorney's fee provision in the offer to compromise because it was not the kind of mistake reasonably made by an ordinary person with no special training or skill and because the court found that a settlement agreement ought not be set aside in the absence of evidence of fraud or undue influence. (*Id.* at p. 671-672.) Here, by contrast, the error was in failing to file a relevant deposition transcript after filing a notice of lodging, which does not fall within the category of "professional shortcomings"

outlined by the Pazderka court and does not relate to a settlement agreement. Pazderka is therefore distinguishable.

Guzman's

counsel, attorney Caryn Sanders, does not declare that she failed to file the transcript by mistake, inadvertence, surprise or excusable neglect, although she requests relief based on attorney's mistake, inadvertence, or excusable neglect, and therefore mandatory relief is not available. However, discretionary relief remains available based on the party's mistake, inadvertence, surprise or excusable neglect. The court has wide discretion to grant relief under Section 473. (*Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.* (2013) 217 Cal.App.4th 1096, 1111.) The court finds that Guzman's failure to file the transcript despite filing a notice of lodging and a separate statement outlining the issues constituted excusable neglect, or alternatively surprise after receiving instructions from the clerk's office to lodge the deposition transcript in the department, and therefore the June 9, 2026 order was taken against Guzman based on her surprise, mistake, inadvertence, or excusable neglect. The court will therefore grant relief under Section 473 and consider Guzman's motion to compel volume 2 of Kazerouni's deposition and opposition thereto on the merits.

c. Motion to compel volume 2 of Kazerouni's deposition

Under

Code of Civil Procedure § 2025.480, if a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.

Guzman

moves for an order compelling volume 2 of Kazerouni's deposition as to specified topics. Guzman contends that Kazerouni's counsel improperly objected to and prevented Kazerouni from answering questions involving efforts to obtain his cell phone records from the date of the incident; whether anyone performed a download of his vehicle's data; whether he had been involved in other motor vehicle collisions; and the positions of other parties in the litigation.

Based

on Guzman's separate statement, the court rules as follows:

Grant:

topics 1, 2, 3, and 4. These categories of discovery are relevant to litigation and discoverable. Kazerouni's phone records as limited are relevant and do not fall under the attorney-client privilege, as they do not constitute communications between Kazerouni and his counsel, and therefore are discoverable. Similarly, Kazerouni's knowledge as to whether any person has done a download of the computer in his vehicle at any time does not constitute communications between Kazerouni and his counsel and is discoverable. Whether Kazerouni has been involved in another motor vehicle collision is discoverable information and is not overbroad.

Deny:

topics 5 and 6. These deposition topics are not reasonably calculated to lead to the discovery of admissible evidence and are therefore irrelevant and not discoverable.

Although

Guzman states that the deposition was not completed and other topics remain that did not arise during Kazerouni's first deposition, the notice of motion only requests volume 2 of Kazerouni's deposition as to the aforementioned topics. The court will therefore grant Guzman's motion to compel a further deposition of Kazerouni only as to topics 1, 2, 3, and 4 of Guzman's separate statement.

Guzman

requests monetary sanctions against Kazerouni and his counsel of record, attorney Emily T Zinn-McBride.

The

court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.480, subd. (j).)

The

court finds that circumstances make the imposition of the sanction unjust. Guzman did not provide an adequate meet and confer declaration, and any meet and confer that occurred during the course of the deposition was clearly

inadequate based on counsels' bad faith arguments and lack of civility. Furthermore, based on the court's review of the deposition transcript, both parties' counsel were highly argumentative and uncivil. At one point, Guzman's counsel began lecturing Kazerouni on the law, which is not the purpose of a deposition and which triggered the premature conclusion of the deposition. Though some of the objections and instructions that Kazerouni not answer were without merit, the court elects not to reward counsel's incivility and failure to meet and confer in good faith with an award of monetary sanctions.

The court orders both parties' counsel to review the civility rules at Appendix 3A of Chapter 3 of the Superior Court of Los Angeles Local Court Rules.

3.

Conclusion

Based

on the foregoing, the court GRANTS Guzman's motion for relief from the court's June 9, 2026 order pursuant to Code of Civil Procedure § 473.

The

court GRANTS IN PART Guzman's motion to compel Kazerouni's deposition, only as to topics 1, 2, 3, and 4 in Guzman's separate statement.

The deposition

shall take place not later than August 11, 2026. The parties are ordered to meet and confer not later than July 20, 2026 as to a deposition schedule.

Guzman's

counsel at the deposition, attorney Matthew M. Taylor, and Kazerouni's counsel at the deposition, attorney Emily T. Zinn-McBride, are ordered to review the civility rules.

The

court DENIES Guzman's request for monetary sanctions.

Guzman is ordered to give notice.

IT IS SO ORDERED.

DATED: July 14, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court